

MASTER SERVICES AGREEMENT

****This Master Services Agreement (the "Agreement")** is entered into as of ****[Date]**** (the "Effective Date") by and between:**

****KabaContent**** ("Company").

and

****[Client Company Name]**** ("Client").

****1. SERVICES****

The Company agrees to provide the Client with short-form video content creation, social media account management, and related services as specifically described in one or more Statements of Work (each, an "SOW") attached hereto and signed by both parties. Each SOW is incorporated into this Agreement by reference. In the event of a conflict between this Agreement and an SOW, this Agreement shall control unless the SOW expressly states otherwise.

****2. TERM AND TERMINATION****

****2.1 Initial Term.**** This Agreement shall begin on the Effective Date and continue for an initial term as defined in the first SOW. Thereafter, this Agreement shall automatically renew for subsequent periods (e.g., monthly) unless either party provides written notice of non-renewal at least ****[Number, e.g., 14]**** days prior to the end of the then-current term.

****2.2 Termination for Cause.**** Either party may terminate this Agreement immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within ****[Number, e.g., 7]**** days of receiving written notice thereof.

****2.3 Termination for Conduct.**** Company reserves the right to terminate this Agreement immediately if Client engages in unlawful, defamatory, misleading, or harassing conduct, or if Client-provided content violates any third-party platform terms of service or applicable laws.

****3. CLIENT RESPONSIBILITIES & CONTENT DELIVERY****

****3.1 Delivery of Raw Footage.**** Client is responsible for filming or providing all raw, unedited video footage ("Raw Content") to the Company.

****3.2 Content Viability & Legality.**** Client warrants that they own or have obtained all necessary rights, licenses, and permissions for the Raw Content (including music, images, and likenesses). Company agrees to edit only Raw Content that, in Company's sole and reasonable professional opinion, has the potential to perform well (i.e., is "content worthy"). Company reserves the right to reject Raw Content that is of low quality, infringes on third-party rights, or is otherwise deemed not viable or illegal for editing.

****3.3 Deadlines.**** To fulfill the monthly quota of edited clips, Client must deliver all Raw Content for that billing cycle ****within the first seven (7) calendar days of the month**** (the "Content Window"). Any Raw Content received after this Window will be processed in the following month's cycle and may count toward the next month's quota.

****3.4 Idea Generation.**** Company may provide video ideas or topics. Client may use these ideas or provide their own. Company is not responsible for a lack of client-provided content resulting in lower upload volumes.

****4. CREATIVE CONTROL & BATCH OPTIMIZATION****

****4.1 Volume-Based Production Model.**** Client acknowledges that the Services are structured around a high-volume production model (exceeding 500 clips per month). Accordingly, individual per-clip revisions are not included in this Agreement.

****4.2 Strategic Direction & Expertise.**** The service is structured around batch optimization and data-driven iteration rather than micro-level revisions. Company utilizes its skills, experience, and data-driven insights to edit and assemble content in the manner it believes has the highest chance of performing well. Client acknowledges that ****Company retains final editorial discretion**** under this volume-based production model.

****4.3 Performance Optimization Requests.**** If Client wishes to adjust the overall creative direction (e.g., "more aggressive edits," "softer music," "different caption tone"), Client may submit these requests in writing for the ****following month's content batch****.

- ****Approval Requirement:**** All such creative direction requests must be approved by the Company. The Company reserves the right to decline requests that, in its sole professional opinion, would negatively impact the content's potential to perform.

- ****Timing:**** Requests for changes to the following month's creative must be submitted before the Content Window (as defined in Section 3.3) for that month.

****4.4 Minor Adjustments.**** Minor, non-editorial changes (such as correcting a misspelled name in a caption or updating a link in a bio) will be accommodated promptly, provided they do not require re-editing video files.

****5. ACCOUNT CREATION AND PLATFORM RISK****

****5.1 Account Creation.**** Company may create and manage social media accounts on Client's behalf. Client grants Company limited access to these accounts solely for the purpose of performing the Services.

****5.2 Platform Risk.**** Client acknowledges that all third-party platforms (including but not limited to TikTok, Instagram, YouTube, etc.) operate independently of Company. These platforms may update their algorithms, terms of service, or community guidelines at any time without notice.

****5.3 No Liability for Platform Actions.**** Company shall not be liable for any actions taken by third-party platforms, including but not limited to: account suspensions or bans; content removals or "shadowbanning"; demonetization or loss of features; reduced reach, views, or engagement; IP blocks or device restrictions; or changes to platform policies that affect account performance or multi-account management.

****5.4 Account Transfer Upon Termination.**** Upon termination of this Agreement and full payment of all outstanding invoices, Company shall provide Client with access credentials to active accounts created under this Agreement. Company reserves the right to suspend, disable, or withhold transfer of accounts if any payment obligations remain outstanding. Inactive, banned, restricted, shadowbanned, or platform-disabled accounts are not guaranteed to be transferable.

****5.5 Platforms may be adjusted based on current performance and platform algorithms. Company reserves the right to suggest platform changes to optimize results.**

****6. PROPRIETARY SYSTEMS****

Company retains exclusive ownership of all internal systems, processes, automation tools, software, proxy infrastructure, devices, device configurations, account management frameworks, operational methodologies, and trade secrets used to perform the Services under this Agreement. Nothing in this Agreement grants Client any ownership, license, or access rights to Company's proprietary systems or infrastructure. Client agrees not to attempt to reverse engineer, replicate, or request access to such systems.

****7. PAYMENT TERMS AND FEES****

****7.1 Fees.**** Client shall pay the Company the fees set forth in each SOW. Unless otherwise specified in the SOW, all fees are stated in United States Dollars (USD).

****7.2 Payment Schedule.**** Fees are due as specified in the SOW (e.g., Monthly in Advance, Bi-Weekly, Weekly). If no schedule is specified, payment is due ****monthly in advance**** on the 1st of each month.

****7.3 Late Payment.**** If payment is not received by the due date, Company reserves the right to pause all work and services (including uploads) until the outstanding balance is paid in full. Accounts past due by ****[Number, e.g., 10]**** days may incur a late fee of ****[Percentage, e.g., 5%]**** per month or the maximum allowed by law.

****8. NO FIDUCIARY DUTY OR PROFESSIONAL ADVICE****

Company does not act as a fiduciary, financial advisor, or legal advisor to Client. Client remains solely responsible for its own business decisions, tax obligations, regulatory compliance, and any consequences arising from the content posted to its accounts. Nothing in this Agreement shall be construed to create a fiduciary relationship between the parties.

****9. NO GUARANTEE OF RESULTS****

****9.1 Performance.**** Client acknowledges that social media platform algorithms, trends, and audience behavior are outside of the Company's control. ****THE COMPANY DOES NOT AND CANNOT GUARANTEE ANY SPECIFIC NUMBER OF VIEWS, LIKES, COMMENTS, FOLLOWERS, OR ANY OTHER METRIC OF ENGAGEMENT OR FINANCIAL RETURN.****

****9.2 Best Efforts.**** Company guarantees that it will perform the services described in the SOW (editing, uploading, managing) to the best of its ability and in a professional manner. Company's obligation is to execute the work, not to guarantee the outcome of that work on third-party platforms.

****10. INTELLECTUAL PROPERTY****

****10.1 Client Ownership.**** Client retains full ownership of all raw footage provided to the Company.

****10.2 Grant of License.**** Client grants Company a non-exclusive, worldwide license to use, modify, edit, and publicly perform the Raw Content and final videos solely for the purpose of

performing the Services under this Agreement (including uploading to Client's social media accounts).

****10.3 Deliverables.**** Upon receipt of full payment for applicable services, all rights, title, and interest in the final edited videos created by Company for Client (the "Deliverables") shall belong to Client.

****11. CONFIDENTIALITY****

****11.1 Obligation.**** Each party (the "Receiving Party") agrees to keep confidential and not disclose to any third party any non-public information disclosed by the other party (the "Disclosing Party") under this Agreement, including but not limited to business strategies, analytics data, financial information, systems architecture, and operational methodologies. This obligation shall survive the termination of this Agreement.

****11.2 Exceptions.**** Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was rightfully in the Receiving Party's possession prior to disclosure; (c) is rightfully obtained by the Receiving Party from a third party without restriction; (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or (e) is required to be disclosed by applicable law, regulation, or legal process (provided the Receiving Party gives the Disclosing Party prompt notice of such requirement).

****12. INDEMNIFICATION****

****12.1 Client Indemnification.**** Client agrees to indemnify, defend, and hold harmless Company, its officers, directors, employees, and agents from and against any and all claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) any Client-provided Content that infringes upon the rights of any third party (including copyright, trademark, or privacy rights); (b) any defamatory, misleading, or unlawful material provided by Client; or (c) Client's breach of any representation or warranty contained in this Agreement.

****12.2 Company Indemnification.**** Company agrees to indemnify, defend, and hold harmless Client from and against any claims arising out of Company's gross negligence or willful misconduct in the performance of the Services. ****Notwithstanding the foregoing, Company shall not indemnify Client for any claims arising from or related to actions taken by third-party platforms (including account suspensions, bans, or content removals) or algorithmic enforcement, as such matters are expressly disclaimed under Section 5 of this Agreement.****

****13. FORCE MAJEURE****

Neither party shall be liable for any failure or delay in performing its obligations under this Agreement (excluding payment obligations) if such failure or delay is due to causes beyond its reasonable control, including but not limited to: acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, pandemics, strikes, internet service provider failures or delays, or platform-wide outages or restrictions imposed by third-party social media platforms.

****14. LIMITATION OF LIABILITY****

****14.1 No Consequential Damages.**** To the maximum extent permitted by law, in no event shall either party be liable to the other for any indirect, incidental, special, consequential, or punitive damages (including loss of profits, data, or goodwill) arising out of or relating to this Agreement.

****14.2 Cap on Liability.**** The Company's total liability to Client for any claims arising under this Agreement shall not exceed the total fees paid by Client to Company during the three (3) months immediately preceding the event giving rise to the liability.

****15. GENERAL PROVISIONS****

****15.1 Independent Contractor.**** The Company is an independent contractor. Nothing in this Agreement shall be construed to create a partnership, joint venture, or agency relationship.

****15.2 Governing Law.**** This Agreement shall be governed by the laws of ****[Your State/Country]**** .

****15.3 Entire Agreement.**** This Agreement, together with all SOWs attached, constitutes the entire agreement between the parties regarding the subject matter hereof.

****IN WITNESS WHEREOF****, the parties have executed this Agreement as of the Effective Date.

****KabaContent****

Signature: _____

Name: _____

Title: _____

Date: _____

****Client****

Signature: _____

Name: _____

Title: _____

Date: _____
